



CHAPTER xxviii.

An Act for incorporating and conferring powers upon the A.D. 1905.
Berkhampstead Gas Company and for other purposes.
[30th June 1905.]

WHEREAS the Great Berkhampstead Gas Light and Coke Company Limited (herein-after referred to as "the limited company") was completely registered under the Act of 7 & 8 Victoria cap. 110 on the twenty-third day of August one thousand eight hundred and forty-nine and was incorporated under the Joint Stock Companies Act 1856 on the thirty-first day of October one thousand eight hundred and fifty-six for the purpose of making and vending in the town of Berkhampstead gas and coke and such other matters as do or may arise from or are or may be obtained in the making of gas and for the purpose of carrying on all such business as may be usually carried on by a gas and coke company :

And whereas by the Great Berkhampstead Gas Order 1888 (herein-after called "the Order of 1888") confirmed by the Gas Orders Confirmation Act 1888 the limited company were authorised to maintain and continue and from time to time alter and enlarge their existing gasworks and works connected therewith on the lands described in the schedule to the Order of 1888 and to supply gas within the parishes of Berkhampstead Saint Peter (now divided into the parishes of Great Berkhampstead Urban and Great Berkhampstead Rural) and Berkhampstead Saint Mary otherwise Northchurch (except the portion of the last-mentioned parish comprised within the limits of supply as defined in the Hemel Hempstead District Gas Act 1878) both in the county of Hertford :

A.D. 1905.

And whereas by the Order of 1888 it was provided that the capital of the limited company should not exceed twelve thousand pounds unless they should thereafter be authorised to raise additional share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament and the amount which the limited company might borrow on mortgage was limited to one-fourth of the amount of the capital of the limited company actually raised by the issue of shares or stock :

And whereas the present share capital of the limited company consists of nine thousand three hundred pounds divided into one thousand four hundred shares of five pounds each bearing dividend at the rate of ten per centum per annum and four hundred and sixty shares of five pounds each bearing dividend at the rate of seven per centum per annum all of which shares have been created and issued and are fully paid up and the limited company have received in respect of the said four hundred and sixty shares premium amounting to one thousand one hundred and thirty pounds six shillings and sixpence leaving a balance of one thousand five hundred and sixty-nine pounds thirteen shillings and sixpence of their authorised capital still unissued :

And whereas the limited company have borrowed on debenture bonds one thousand five hundred pounds in respect of which they have received premium amounting to twelve pounds :

And whereas the demand for gas within the area of supply of the limited company has increased and is increasing and it is expedient that the limited company should be dissolved and the members thereof reincorporated with the powers conferred by this Act for supplying gas within the limits of supply of the limited company in the county of Hertford for constructing gasworks upon a new site and the sale and disposal of the lands forming the existing site and for providing additional capital for the purposes of such extension and improvement and generally of the undertaking of the Company :

And whereas the site of the existing works of the limited company for the manufacture and storage of gas and residual produce is situate in close proximity to Great Berkhamstead Grammar School and the lands forming the said site are required for the extension of the said grammar school and it is expedient that the Company should be authorised to acquire lands for a new site and remove their gasworks thereto as provided by this Act :

And whereas it is expedient that the Company should be authorised to lay down and maintain a line of rails upon and along the footpath under the bridge carrying the London and North Western Railway over the said footpath in the parish of Great Berkhamstead Urban for the purpose of connecting their lands on either side of the said railway and the conveyance of coal and materials between the said railway and their works :

A.D. 1905.

And whereas a plan showing the lands which may be taken or used under the powers of this Act and a plan and section of the line of rails by this Act authorised with a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands were duly deposited with the clerk of the peace for the county of Hertford and are herein-after respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the *Berkhamstead Gas Act* Short title. 1905.

2. The following Acts or parts of Acts are (except where expressly varied by or inconsistent with this Act) incorporated with and form part of this Act (that is to say) The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts the Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building."

Incorporation of Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless

Interpretation.

A.D. 1905. there be something in the subject or context repugnant to such construction :

The expression "the Company" means the Company incorporated by this Act;

The expressions "the works" "the gasworks" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively.

Limits of Act.

4. The limits of this Act (herein-after called "the limits of supply") shall be the parishes of Berkhamstead Saint Peter (otherwise Great Berkhamstead Urban and Great Berkhamstead Rural) and the parish of Berkhamstead Saint Mary otherwise Northchurch in the county of Hertford (except so much of the last-mentioned parish as is comprised within the limits of supply as defined in the Hemel Hempsted District Gas Act 1878).

INCORPORATION.

Incorporation of Company.

5. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes herein-after mentioned and shall be incorporated by the name of the Berkhamstead Gas Company and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General purposes of Company.

6. The Company shall be established for the purpose of manufacturing storing and supplying gas for lighting heating motive power and other purposes within the limits of this Act and may produce purchase store sell dispose of and deal in gas coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia and all other products refuse or residuum arising remaining produced by or resulting or obtained from the manufacture of gas or the materials used therein and may manufacture

and sell such articles as can be produced from or by means of the several matters and things aforesaid or any of them and may purchase and store coal oil and other materials employed in the manufacture of gas and may (but only for the purposes of the Company within the limits of this Act) acquire or take and use any leave licence or authority (not being exclusive) to work use exercise or put in practice any invention or inventions under any Letters Patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke patent fuel tar pitch asphaltum ammoniacal liquor and other products from coal oil and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto (but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention or inventions) and generally may carry on any business usually carried on by gas companies or which is or may become incidental thereto and may carry the powers of this Act into execution.

A.D. 1905.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains and pipes plant plugs lamps retorts gauges meters gas stoves and fires gas fittings lamp columns and brackets syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Present
property of
limited com-
pany vested
in Company
incorporated
by this Act.

A.D. 1905.

Memoran-
dum of asso-
ciation of
limited com-
pany to be
void without
prejudice to
remedies for
antecedent
breaches
thereof.

8. Subject to the provisions of this Act the memorandum of association of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such But nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

Nothing to
affect pre-
vious rights
and liabili-
ties.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and their shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Contracts
prior to Act
to be binding.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited

company or the trustees or persons acting on behalf of the limited company the Company had been a party thereto. A.D. 1905.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively. Actions &c.
not to abate.

12. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. Company
to satisfy
liabilities of
limited com-
pany.

13. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. Recovery of
gas rents &c.

14. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to pay-
ment of
debts owing
before pass-
ing of Act.

15. Notwithstanding the avoidance of the said memorandum of association all certificates (until cancelled under the powers Certificates
&c. to remain
in force.

A.D. 1905. of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if they had not been avoided.

Books &c.
continued
evidence.

16. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to
continue
until re-
moved.

17. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto attaching until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
registers of
members to
be continued.

18. The books kept by the limited company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until some other register of shareholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

CAPITAL.

Capital.

19. The capital of the Company shall be fifty-one thousand three hundred pounds whereof the existing paid-up capital of nine thousand three hundred pounds consisting of seven thousand pounds divided into one thousand four hundred ordinary shares of five pounds each entitled to a dividend of ten per centum and two thousand three hundred pounds divided into four hundred and sixty ordinary shares of five pounds each entitled to a dividend of seven per centum is in this Act called "the original capital" and the sum of forty-two thousand pounds is in this Act called "the additional capital" and shall be raised in manner herein-after mentioned The Company shall convert into ordinary stock the whole of the original capital.

20.—(1) The stock in the original capital shall be vested in the several persons who immediately before the passing of this Act were the registered holders of shares in the limited company five pounds of ordinary stock being substituted for each ordinary share of the limited company.

A.D. 1905.

Vesting
shares in
original
capital in
present
shareholders.

(2) All stock so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and encumbrances as at the time of vesting affected the shares or share for which the same is substituted and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition of or affecting such shares or share and every agreement deed or other instrument or testamentary disposition made before the passing of this Act and affecting shares in the limited company shall take effect with reference to the whole or a proportionate part as the case may be of the stock substituted therefor.

21. The Company shall call in and cancel the existing certificates of shares in the limited company and issue in lieu thereof stock certificates but the holders of such existing certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof but if any holder of any existing share or shares of the Company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book the Company may retain any dividend declared or made payable upon or in respect of the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the Company to have been lost or destroyed.

Company to
call in and
cancel ex-
isting share
certificates
and issue
new certifi-
cates in lieu
thereof.

22. The Company may raise additional capital not exceeding in the whole forty-two thousand pounds by the creation and issue at their option of new ordinary shares or stock or preference shares or stock or wholly or partially by one or more of those modes respectively but subject to the provision in this section herein-after contained but the Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds

Power to
raise addi-
tional capital.

A.D. 1905. — nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of forty-two thousand pounds. Provided also that the Company shall not at any time issue preference shares or stock exceeding in nominal amount fifteen thousand pounds.

Capital stock to be transferable. **23.** All capital stock of the Company shall be transferable in sums of five pounds or multiples of five pounds and notice of this enactment shall be stated in all certificates of such stock.

Transfers of shares although by present name to be valid. **24.** All transfers or other dispositions of any existing shares in the capital of the Company as existing up to the conversion thereof into ordinary stock by virtue of this Act shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of ordinary stock which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof respectively shall describe the same by the name or denomination which the shares transferred or disposed of had before such conversion.

LIMITATION OF PROFITS.

Profits of Company limited. **25.** The profits of the Company to be divided among the proprietors in any year or half-year as the Company may decide as herein-after provided shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say) Ten pounds per centum per annum in respect of the original capital entitled to a dividend of ten per centum seven pounds per centum per annum in respect of the original capital entitled to a dividend of seven per centum seven pounds per centum in respect of so much of the additional capital by this Act authorised as shall be raised by ordinary shares or stock and five per centum on so much of such additional capital as shall be raised by preference shares or stock. The Company if they think fit may create and issue preference shares or stock with a lesser rate of dividend than five per centum per annum.

26. Where in any year or half-year as the case may be the dividend of the Company on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year or half-year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year or half-year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the limited company existing at the passing of this Act may be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year or half-year in which the clear profits of the Company shall be insufficient to enable the Company in such year or half-year to pay the dividend at the authorised rate on the ordinary capital of the Company and save as in this Act provided no sum shall in any year or half-year be carried by the Company to any reserve fund.

A.D. 1905.

Power to
create a
reserve fund.

27. If the clear profits of the undertaking in any year or half-year as the case may be amount to a larger sum than is sufficient to pay the dividend on the preference capital and dividend on the ordinary capital at the authorised rate the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum in such year or half-year upon the paid-up capital of the Company be set apart and all sums so set apart may be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities may also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident fire strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen :

Power to
create an
insurance
fund.

A.D. 1905.

Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend :

Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth of the paid-up capital of the Company as aforesaid.

Renewals.

28. The directors of the Company may in each year or half-year as the case may be if they think fit appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one-half per centum on the paid-up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal maintenance and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes. Such fund may be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities may also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-tenth of the paid-up capital for the time being of the Company :

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at any time reduced below such sum it may thereafter be made up to that sum and so from time to time as often as such reduction shall happen. Provided further that resort may from time to time be had to the said fund for the purposes aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-tenth of the paid-up capital as aforesaid.

Application
of excess of
profits.

29. If the clear profits of the undertaking of the Company in any year or half-year as the case may be amount to a larger sum than is sufficient to pay the dividend on the preference capital and dividend at the authorised rate on the ordinary capital of the Company the excess or such portion of it as was not carried to the reserve fund insurance fund or renewal fund shall be carried to the credit of the divisible profits of the undertaking for the next following half-year.

REGULATIONS AS TO ISSUE OF CAPITAL.

A.D. 1905.

30. Notwithstanding anything in this Act contained the Company shall when any shares or stock in the additional capital created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock at the first offer thereof shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. And provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock in the Company may be accepted in preference and preference may in like manner be given to any gas consumer whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

New shares
or stock to
be offered by
auction or
tender.

31. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase
money of
capital sold
to be paid
within three
months.

32. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of each urban and rural district council whose district or any part thereof is within the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two

Notice to be
given as to
sale of shares
or stock.

A.D. 1905. consecutive weeks in one or more local newspapers circulating within the limits of the Company for the supply of gas.

Shares or stock not sold by auction or by tender to be offered to holders of shares or stock.

33. When any shares or stock in the additional capital created under the powers of this Act have been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of the original and additional capital of the Company in manner provided by and subject to the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and if the aggregate amount of shares or stock applied for by the said holders shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the said holders as nearly as may be in proportion to the amounts applied for by the said holders respectively or may be offered at such reserved price to the consumers of gas supplied by the Company or partly to one and partly to another or others Provided always that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock in the additional capital created under the powers of this Act and the reserve put upon such shares or stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal value thereof and any shares or stock not then sold shall be again offered to the holders of original and additional capital at the last-mentioned reserved price in the manner aforesaid and so from time to time until the whole of such shares or stock is sold.

Application of premium arising on issue of shares or stock.

34. Any sum of money which shall arise by way of premium from the issue of any such shares or stock after deducting therefrom (if the Company think fit) the expenses of and incident to such issue shall not be dealt with and treated as profits of the Company but shall be applied to the general purposes of the Company to which capital is properly applicable but shall not be entitled to dividend Provided that in any case where a power to raise money by borrowing or to create a reserve fund insurance fund or renewal fund is made proportionate to the paid-up capital the premiums received from the sale of shares or stock by auction or tender as herein-before provided shall for such purpose be reckoned as part of the paid-up capital.

BORROWING POWERS.

A.D. 1905.

35. The Company may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the sum of one thousand five hundred pounds already borrowed by the limited company) one-third part of the amount of the capital of the Company at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to borrow.

36. All mortgages and rentcharges granted by the limited company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and rentcharges have priority over all mortgages and debenture stock granted created and issued by virtue of this Act.

Priority of existing mortgages.

37. The mortgagees of the Company may enforce the payment of arrears of interest or principal or principal and interest due on their mortgages and of any rentcharge by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

Arrears to be enforced by appointment of receiver.

38. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any such subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys

Debenture stock.

A.D. 1905. secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages over other debts.

39. All money raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking or works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Receipt in case of persons not *sui juris*.

40. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of money.

41. All money raised under this Act by the Company whether by shares stock debenture stock or borrowing shall be applied only to the purposes by this Act authorised and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

MEETINGS.

First and future ordinary meetings after passing of Act.

42. The first ordinary meeting of the Company shall be held within six months after the passing of this Act and all future ordinary meetings of the Company shall be held either yearly in February or March or (as the Company may decide in general meeting) half-yearly in the months of February or March and August or September in every year at the Company's office at Great Berkhamstead or at such other place and at such other time as shall be appointed for that purpose by an order of the directors.

43. The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be six shareholders present in person or by proxy holding in the aggregate not less than one-twentieth of the subscribed capital of the Company.

A.D. 1905.

Quorum of
general
meetings.

DIRECTORS AND AUDITORS.

44. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than three as the Company shall determine.

Number of
directors.

45. The qualification of a director shall be the possession in his own right of stock or shares of the Company to the nominal amount of not less than one hundred pounds.

Qualification
of directors.

46. The quorum of a meeting of directors shall be three.

Quorum of
directors.

47. George Daniels William Dwight Anthony Slater George Chilton and George Paxton Daniels shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the ordinary meeting to be held in February or March in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

First direc-
tors.Election of
directors.

48. The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Incorporated Society of Accountants and Auditors and need not hold shares in the Company.

Auditors.

A.D. 1905.

WORKS AND LANDS.

Powers as to
construction
and mainten-
ance of gas-
works &c.

49. Subject to the provisions of this Act the Company may maintain alter improve enlarge extend and renew their existing gasworks and manufactories upon the lands described in Part I. of the First Schedule to this Act on which the same are erected and they may enter upon purchase and take the lands described in Part II. of the said schedule and on such lands may erect lay down provide and maintain alter improve enlarge extend and renew or discontinue additional and other gasworks manufactories coal and oil stores retorts condensers scrubbers exhausters purifiers gasholders sulphate plant tanks receivers drains sewers mains pipes meters gas stoves and fires gas fittings lamps lamp columns and brackets burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may produce sell provide supply and deal in coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia and other products employed in or resulting from the manufacture of gas and also meters fittings tubes pipes and other similar articles and things in any way connected with gasworks or with the supply of gas as they may think fit:

Provided that notwithstanding anything shown upon the deposited plans the Company shall not enter upon take or use without the consent of the owners thereof any lands belonging to the Company of Proprietors of the Grand Junction Canal or any lands belonging to the London and North Western Railway Company other than the land in respect of which an easement is required for the laying and maintaining of the line of rails by this Act authorised between lands of the Company situate on both sides of the London and North Western Railway.

Sale of site
of existing
works.

50. When and so soon as their new gasworks shall have been constructed on the lands described in Part II. of the First Schedule to this Act and be in use for the purposes of their undertaking the Company may discontinue their existing works and sell and dispose of the lands forming the site thereof and the agreement dated the seventh day of December one thousand nine hundred and four made between Earl Brownlow of the first part the Company of the second part and the Governors of Berkhamstead Grammar School of the third part and set forth in the Second Schedule to this Act is hereby confirmed.

51. Subject to the Lands Clauses Acts the Company may sell lease or otherwise dispose of any other lands vested in or held on lease by them before the passing of this Act or acquired by them under the powers of this Act and not for the time being required for the purpose thereof.

A.D. 1905.
Sale or lease
of lands not
required.

52. The Company may for the purposes of their undertaking and for connecting their lands situate on either side and immediately adjoining the London and North Western Railway lay down and maintain a line of rails on a gauge of two feet six inches along and on the level of so much of the footpath which passes under the said railway as is situate on the property of the London and North Western Railway Company between the fields numbered respectively 50 and 36 on the Ordnance map (scale $\frac{1}{2500}$) published in 1898 of the parish of Great Berkhamstead Urban.

Power to lay
rails on foot-
path.

53. For the protection of the Great Berkhamstead Urban District Council (in this section referred to as "the council") the following provisions shall unless otherwise agreed upon between the Company and the council have effect (that is to say):—

For protec-
tion of urban
district coun-
cil of Great
Berkham-
stead.

- (1) The powers by this Act conferred upon the Company to use for the purpose of their undertaking the footpath under the railway of the London and North Western Railway Company (in this section called "the subway") shall not be exercised by the Company except between the hours of nine in the evening and nine in the morning of any day from the first day of March to the thirtieth day of September inclusive and between the hours of nine in the evening and ten in the morning of any day from the first day of October to the last day of February inclusive:
- (2) The Company shall provide notice boards at each end of the subway stating the times during and the conditions under which the Company may use the subway:
- (3) The Company shall at their own expense pave the whole length of the subway with brick or tar and such paving shall be maintained by them in a fitting state of repair:
- (4) The line of rails shall be laid on one side of the subway on a gauge not exceeding two feet six inches the width of the trucks used thereon shall not exceed three feet and the rails shall be laid and maintained by the Company on a level with the surface of the subway:

A.D. 1905.

(5) The Company shall station a watchman at each end of the subway at such times as the same is being used by them and during such times red lamps shall be placed at each entrance thereof and the subway shall be properly and sufficiently lighted throughout:

(6) Any dispute or difference which may arise between the council and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other suitable person to be agreed upon between the council and the Company or failing such agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

Power to
purchase
lands by
agreement.

54. The Company may for the purposes of their undertaking purchase take and hold by agreement (but not otherwise) in addition to the lands described in the First Schedule to this Act any lands and hereditaments not exceeding in the whole ten acres which they may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the First Schedule to this Act.

Power to
utilise pipes
for ancillary
purposes.

55. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of this Act for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to lay
pipes in
streets not
dedicated to
public use.

56. The Company may upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street road footway or pavement such pipes as may be requisite or proper for the furnishing such supply and the provisions of the

Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. A.D. 1905.

57. The following provisions for the protection of the county council of the administrative county of Hertford (in this section referred to as "the county council") shall unless otherwise agreed between the Company and the county council have effect:— For protection of Herts County Council.

- (1) The Company shall not permit any trench made by them in any main road street bridge or highway for the time being maintainable by the county council to be open for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards in length where only two carts can pass at the same time:
- (2) The Company shall not without the consent in writing of the county council open or break up the roadway over or in any manner interfere with the structure of any county bridge or other bridge for the time being maintainable by the county council but shall if so required by the county council attach any pipe or main which they may wish to carry across under or on the outside of such bridge as the county council may reasonably direct:
- (3) Where any pipe conduit or other work of the Company is to be laid or constructed beneath the surface of any main road street bridge or highway as aforesaid the same shall if possible be laid or constructed at such a depth that not less than two feet shall intervene between the surface of such road street bridge or highway and the upper surface of any such pipe conduit or work. Any difference as to the possibility of so laying or constructing any such pipe conduit or work shall be determined by arbitration as herein-after in this section provided:
- (4) If the county council shall for the purpose of altering any such road street bridge or highway as aforesaid or rebuilding or altering any such bridge at any time require the position or level of any pipe conduit or other work of the Company laid in under through or

A.D. 1905.
—

by the side of any such road street bridge or highway as aforesaid to be altered the Company shall at its own expense on receiving notice in writing under the hand of the clerk of the county council so to do alter the same as reasonably required by such notice and under the superintendence of the surveyor of the county council and any additional expense in relation to the alteration or rebuilding of any such bridge as aforesaid or the approaches thereto to which the county council may be put by reason of necessity for providing for any pipe conduit or other work of the Company shall be paid by the Company to the county council. The Company shall also pay to the county council all reasonable expense actually incurred by them in relation to the superintendence by this section authorised. Any difference as to the reasonableness of any requirement contained in any such notice or as to the amount of any sum to be so paid by the Company to the county council shall be determined by arbitration as herein-after provided :

- (5) If the Company in the execution of any works in or affecting any such road street bridge or other highway as aforesaid shall cause any damage injury or disturbance to such road street bridge or highway and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Gasworks or Waterworks Clauses Act 1847 then it shall be lawful for the county council after reasonable notice to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence :
- (6) The Company shall not exercise the powers contained in the section of this Act the marginal note whereof is "Power to utilise pipes for ancillary purposes" so as to affect any main road or county bridge except with the consent of the county council and the county council shall not be liable to the Company for any

damage which may be done to any mains pipes culvert or other work constructed under the power of the said section by the use upon any such main road or county bridge of any steam roller or other engine : A.D. 1905.

- (7) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed (in default of an agreement between the parties) by the President of the Institution of Civil Engineers on the application of either party.

58. The following provisions for the protection of the London and North Western Railway Company shall be in force and have effect and be binding upon the Company :— For protection of London and North Western Railway Company.

In laying down and executing or in effecting the repairs and renewals of any mains pipes or other works upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by such railway company or the bridges approaches viaducts stations or other works or any level crossings of such railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of such railway company and only according to plans submitted to and in such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Company who also shall restore and make good the roads over any such bridges level crossings and approaches which such railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or at any station thereon And if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any bridge or level crossing the Company shall make compensation in respect thereof to such railway company the amount of such compensation unless agreed upon to

A.D. 1905.

be determined by arbitration in the manner herein-after provided :

Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Company or either of them.

For protection of
Grand Junction
Canal
Company.

59. Notwithstanding anything in this Act or in any Act incorporated with this Act the Company shall not without the previous consent in writing of the Company of Proprietors of the Grand Junction Canal (herein-after called "the canal company") lay or maintain any mains pipes or other works across over under or along the Grand Junction Canal or the towing-path thereof or other property of the canal company otherwise than by means of public bridges across the same and in such manner that the mains pipes and works shall if required by the canal company be laid inside the parapets of such bridges and that no injury or interference with the permanent structure brickwork or timbers of any such bridge and no interruption of the traffic on the canal or towing-path shall be occasioned and the canal company may at any time after the passing of this Act upon giving to the Company three months' notice in writing of their intention so to do remove alter or renew any bridge across over or along which any mains pipes or works may be laid in the same manner as they might have done if this Act had not been passed and such mains pipes and works had not been so laid without making compensation to the Company for any expense or loss occasioned to them thereby and in the event of any such alteration or renewal the Company shall at their own expense alter the position of their mains pipes or works and relay the same upon the altered or renewed bridge in the same manner and subject to the same restrictions as in the case of the original bridge Provided that all works of the Company in relation to the laying down maintaining altering or relaying of any mains pipes or other works across over or along any such bridges as aforesaid shall be executed under the supervision and to the reasonable satisfaction of the engineer of the canal company and according to plans approved by him.

SUPPLY OF GAS &C.

A.D. 1905.

60. The standard price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter shall not at any time exceed four shillings and sevenpence per one thousand cubic feet:

Dividend
dependent
on price
charged.

Provided that the Company may increase or reduce the price charged by them for gas above or below the said standard price subject to a reduction or increase in the dividend on the ordinary share capital or stock as follows:—

In respect of any year or half-year as the case may be during any part of which the price charged by the Company for gas shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend at the rate per annum of five shillings upon every one hundred pounds of original capital with a ten per centum standard rate of dividend and at the rate per annum of three shillings and sixpence upon every one hundred pounds of original or additional ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds;

In respect of any year or half-year as the case may be during the whole of which the price charged by the Company for gas shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend at the rate per annum of five shillings upon every one hundred pounds of original capital with a ten per centum standard rate of dividend and at the rate per annum of three shillings and sixpence upon every one hundred pounds of original or additional ordinary paid-up capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds:

Provided that if in any year or half-year the dividend payable shall comprise a fractional amount less than one-quarter per centum the Company may defer the payment of such frac-

A.D. 1905. tional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

Charge for gas supplied by means of prepayment meters.

61.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers within the limits of this Act through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet including cooker:

The said charge shall include the providing letting fixing repairing and maintenance of the meters fittings and cooker and the cost of collection and other costs incurred by the Company in connection with the meter fittings and cooker.

(3) The maximum charge for the hire of a prepayment meter without fittings and cooker shall be at the rate of sixpence per one thousand cubic feet of gas supplied through such meter.

(4) For the purpose of this section the expression “prepayment meter” means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Pressure of gas.

62. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to

such testing of pressure and two hours previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

A.D. 1905.

63. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was caused by an unavoidable cause or accident.

No penalty
in case of
unavoidable
cause.

64. The prescribed number of candles shall be fourteen.

Quality of
gas.

65. Within twelve months from the passing of this Act if the same has not already been done the Company shall provide a testing place at their existing works and they shall also before commencing to supply gas from their new works provide a testing place thereat and the Company shall provide and fix in such testing places all the necessary apparatus and machinery for testing the purity illuminating power and pressure of the gas supplied by them and such testing places shall be deemed to be official testing places in conformity with the provisions of the Gasworks Clauses Act 1871.

Testing
place.

66. The prescribed burner shall be a Sugg's Wandsworth Argand burner or such other burner as the Board of Trade may approve on the application of the Company.

Burner.

67.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture fittings engines stoves ranges or pipes (herein-after referred to as "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

Power to
supply gas
fittings &c.
for heating
and other
purposes.
Fittings not
to be subject
to distress.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark

A.D. 1905. — conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Company to pay interest on money deposited as security for gas meter &c.

68. If any person is required by the Company to give to them security in respect of any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Power to refuse to supply persons in debt for other property.

69. If a person requiring a supply of gas has previously quitted premises at which gas was supplied to him by the Company or the limited company without paying all gas or meter rent due from him the Company may refuse to furnish to him a supply of gas until he pays the same.

Period of error in defective meters.

70. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by the Company or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

MISCELLANEOUS.

Dwelling-houses for persons in Company's employ.

71. The Company may purchase or take on lease or on any lands belonging or leased to them may erect or acquire fit up and maintain and let dwelling-houses for their officers servants and workmen.

Anti-fluctuators for gas engines.

72. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so doing or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at

the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer. A.D. 1905

73. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construction and placing of pipes &c. between mains and meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

A.D. 1905.

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Company
may contract
with local
authority &c.
for supply in
bulk.

74. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Discounts.

75. It shall be lawful for the Company if at any time they may so think fit to allow discounts and rebates in the price of supplies to large consumers and to any local authority company or person contracting with the Company for any such supplies upon such terms and subject to such conditions as shall be agreed upon but in no case shall such discounts exceed twenty per centum upon the price obtaining and charged to the ordinary consumers in such district or districts :

Provided that such discounts or rebates shall be of equal amount under like circumstances to all consumers and that notice of the effect of this section shall be affixed in a conspicuous place at the Company's chief office for the time being.

Gas con-
sumers to
give notice
to Company
before re-
moving.

76. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

77. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

A.D. 1905.

As to service
of notices on
Company to
discontinue
supply of gas.

78. The Company may enter into and fulfil any contract or arrangement with any county urban rural or local authority having powers within any part of the limits of this Act for the supply of gas by the Company for public purposes within the limits of this Act for any period not exceeding under any one such contract or arrangement seven years.

Contracts for
supplying
gas for public
purposes.

79. The Company if they think fit may under the provisions of the Electric Lighting Acts 1882 and 1888 make application for a Provisional Order or licence to supply electrical energy for public and private purposes and may apply their funds for the purpose of such application.

Power to
apply for a
Provisional
Order to
supply elec-
trical energy.

80. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

Power for
directors to
determine
remunera-
tion of
secretary.

81. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily. There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Copy of Act
to be regis-
tered.

82. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Costs of Act.

A.D. 1905.

SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PART I.

LANDS FORMING THE SITE OF THE EXISTING GASWORKS OF THE COMPANY.

(1) A piece of land belonging or reputed to belong to the limited company containing by admeasurement one rood eight perches and nineteen yards or thereabouts bounded on the north by Mill Street on the east by land belonging or reputed to belong to the Governors of Berkhamstead Grammar School and the trustees of the Baptist Cemetery on the south by land belonging or reputed to belong to the said trustees and on the west by the road called the Wilderness.

(2) Land belonging or reputed to belong to the limited company on which a gasholder and storehouse are situate containing by admeasurement nine perches and eight yards or thereabouts bounded on the north by land and buildings belonging or reputed to belong to David Clark on the east by the road called the Wilderness on the south by land and buildings belonging or reputed to belong to Edward Kingham and George Catherall and on the west by the road called Water Lane.

(3) Land in the occupation of the limited company and held by them on lease from the Right Honourable Earl Brownlow for a term of ninety-nine years from the twenty-ninth day of September one thousand eight hundred and eighty-six containing by admeasurement one rood and twenty perches or thereabouts bounded on the north and west by land belonging or reputed to belong to the said Earl and on the east and south by Mill Street.

PART II.

LANDS TO BE ACQUIRED FOR NEW GASWORKS AND OTHER PURPOSES OF THE GAS UNDERTAKING OF THE COMPANY.

(1) Certain lands being the fields numbered respectively 45 and 50 on the Ordnance map (scale $\frac{1}{25000}$) of the said parish of Great Berkhamstead Urban (published in 1898) bounded on the north-east by land belonging to the London and North Western Railway Company on the north-west by a public road called Billet Lane on the south-west by land the property of the Company of Proprietors of the Grand Junction Canal and on the south-east by land belonging or reputed to belong to the said Earl Brownlow.

(2) Certain lands belonging or reputed to belong to the said Earl Brownlow situate on the north-east side of the London and North Western Railway being a portion of the field numbered 36 on the said Ordnance map and containing by admeasurement about seventeen perches bounded on the north-east north-west and south-east by land forming the remainder of the said field and on the south-west by the said London and North Western Railway.

A.D. 1905.

THE SECOND SCHEDULE.

AN AGREEMENT made the seventh day of December one thousand nine hundred and four between the Right Honourable ADELBERT WELLINGTON BROWNLOW EARL BROWNLOW (herein-after called "Lord Brownlow") of the first part the GREAT BERKHAMSTED GAS LIGHT AND COKE COMPANY Limited having parliamentary powers and carrying on business under the authority of the Great Berkhamsted Gas Order 1888 and having their registered office at Berkhamsted in the county of Hertford (herein-after called "the Company") of the second part and the several persons whose names addresses and descriptions are set forth in the Third Schedule thereto being the majority of the GOVERNORS for the time being of the foundation called BERKHAMSTED GRAMMAR SCHOOL in the parish of Berkhamsted Saint Peter in the county of Hertford who on the second day of December one thousand nine hundred and four were present at a meeting of their body duly constituted (herein-after called "the Governors") of the third part.

WHEREAS Lord Brownlow is seised of the hereditaments described in the First Schedule hereto (herein-after called "the land coloured yellow") for an estate of inheritance in fee simple in possession:

And whereas the Company are seised of the hereditaments described in the Second Schedule hereto (herein-after called "the land coloured red") for an estate of inheritance in fee simple in possession free from incumbrances:

And whereas by reason of the extension of the Company's business the land coloured red has become inadequate for the purposes of gas manufacture for which the same is now occupied and used by the Company under their parliamentary powers as aforesaid:

And whereas the Governors are desirous of acquiring the land coloured red (which adjoins on part of the east side thereof property of the said

A.D. 1905. foundation) and are also desirous in the interests of the said foundation that the manufacture and storage of gas and other like processes should not be carried on in the immediate neighbourhood of the buildings of the said foundation :

And whereas for the furtherance of such desires on the part of the Governors Lord Brownlow (being one of such Governors) at their request has agreed to sell the land coloured yellow to the Company for the purposes of their undertaking upon the terms that the Company shall convey the land coloured red to the Governors and shall enter into the covenants herein-after contained and for the further considerations herein-after appearing :

And whereas for the purpose of carrying out the scheme hereby contemplated powers in this behalf require to be obtained by the Company by means of a Bill in Parliament and by the Governors by means of an Order of the Board of Education sanctioning the said scheme :

Now it is hereby agreed and declared as follows :—

1. Lord Brownlow in consideration of the scheme hereby contemplated being duly carried out agrees to sell and the Company agree if and when they shall obtain the power from Parliament to do so to purchase for the sum of four hundred and ninety-four pounds the land coloured yellow and the inheritance thereof in fee simple in possession and the Company agree to sell and the Governors for the like consideration as aforesaid agree to purchase for the sum of one thousand three hundred and seventy-five pounds the land coloured red and the inheritance thereof in fee simple in possession.

2. Lord Brownlow further agrees to grant to the Company (if and so far as he has power so to do) full right and liberty for the Company to construct maintain and use a line of rails for the conveyance of coal and other materials between such part of the land coloured yellow as is situate on the south side of the railway (upon which works for the manufacture and storage of gas and other similar purposes are intended to be erected) and such part of the land as is situate on the north side of the railway (which is intended to be used (1) as a yard for the storage of coal when delivered by rail (2) for the erection of a shoot or tip by which the same may be discharged from the adjacent siding and (3) for other like purposes in connexion with the Company's undertaking) The said line of rails is to pass under the railway by way of the existing arch or subway at the points indicated on the plan annexed to these presents by the letters B and C.

3. The Company shall in the conveyance to the Governors of the land coloured red enter into a covenant with the Governors not to store or carry on the manufacture or any process connected with the manufacture of gas on the piece of land belonging to the Company marked A on the said plan and not to use the said piece of land or any other land belonging to the Company within a radius of four hundred and forty yards from the land coloured red for any such purpose or for any purposes connected with the

manufacture treatment or storage of gas or with any such process or act - A.D. 1905.
incident to the nature of their undertaking.

4. The title to the land coloured yellow shall commence with the will of the late John William Spencer Brownlow Earl Brownlow who died on the twentieth day of February one thousand eight hundred and sixty-seven and it shall be assumed that he died seised thereof and the title to the land coloured red shall commence with the several conveyances thereof to or in trust for the Company and abstracts of such respective titles shall be delivered to the Company and the Governors respectively or to their respective solicitors within one calendar month from the twenty-fifth day of March one thousand nine hundred and five and within twenty-one days after the delivery of each such abstract statements in writing shall be sent to the solicitors of Lord Brownlow and the Company respectively of the objections and requisitions (if any) to or on such abstract or the title to which it relates or the evidence of such title or this agreement and subject thereto the title is to be deemed accepted and all objections and requisitions not included in any statement sent within the time aforesaid are to be deemed waived and each of such abstracts is to be deemed perfect except for the purpose of any further objections or requisitions which could not be taken or made on the information therein contained and an answer to any objection or requisition is to be replied to in writing within fourteen days after the delivery thereof and if not so replied to is to be considered satisfactory and time is to be deemed in all respects as of the essence of this clause The form of the conveyance in each case shall be settled as soon as possible after the acceptance of the title If either the Company or the Governors shall insist on any objection or requisition which Lord Brownlow or the Company (as the case may be) shall be unable or unwilling to remove or comply with or if any question should arise as to the conveyance and the objection or requisition should not be withdrawn or the question waived within ten days after the same shall have been required to be so withdrawn or waived then Lord Brownlow or the Company (as the case may be) may by notice in writing and notwithstanding any intermediate negotiation or litigation rescind this agreement which shall thereupon as between all parties hereto become absolutely void and each of the parties hereto shall pay his or their own costs howsoever incurred in relation to these presents or the scheme hereby contemplated and shall return all abstracts and papers in his or their possession to the persons to whom the same respectively shall belong.

5. The sale of the land coloured yellow to the Company shall be completed on the twenty-ninth day of September one thousand nine hundred and five or within one calendar month from the date of the Royal Assent being obtained to the Act authorising the removal of the works at the office of Lord Brownlow's solicitors Messrs. Nicholl Manisty & Co. at No. 1 Howard Street Strand London when the purchase money of four hundred and ninety-four pounds is to be paid as to three hundred and seventy-five pounds part thereof by the Governors and as to one hundred and nineteen

A.D. 1905. pounds the balance thereof by the Company to Lord Brownlow or as he shall direct and Lord Brownlow (together with all other necessary parties if any) shall make a proper assurance of the land coloured yellow to the Company free from incumbrances such assurance to be prepared by and at the expense of the Company.

6. The purchase money of one thousand three hundred and seventy-five pounds herein-before agreed to be paid by the Governors in respect of the land coloured red shall be paid to the Company or as they shall direct as to three hundred and seventy-five pounds part thereof as a deposit upon the completion of the sale of the land coloured yellow and as to one thousand pounds the balance thereof on the twenty-fifth day of March one thousand nine hundred and eight or within one calendar month from the date of the removal of the works referred to in clause 7 upon which last-mentioned day the sale of the land coloured red shall be completed at the office of the Company's solicitor Mr. A. W. Vaisey at Berkhamsted when the Company and all other (if any) necessary parties shall make a proper assurance of the land coloured red to the Governors all buildings substructures and pipes thereon except boundary fences having been previously cleared and removed and the land levelled free from incumbrances such assurance to be prepared by and at the expense of the Governors.

7. The land coloured yellow is sold subject to all rights and easements affecting the same but vacant possession thereof and of the land coloured red shall be given to the Company and to the Governors respectively upon the day in each case fixed for the completion of the purchase of the same and upon the completion of the purchase of the land coloured yellow the Company shall forthwith proceed to remove their works from the land coloured red and the land marked A on the said plan and to re-erect the same on the land coloured yellow and to complete such removal and re-erection as soon as practicable but so as not to in any way interfere with the adequate supply of gas to their district in the meanwhile in order to carry out the requirements of this and the preceding clauses hereof.

8. The descriptions of the land coloured yellow and the land coloured red in the First and Second Schedules hereto respectively contained are believed and shall be deemed to be correct and no objection shall be made or compensation claimed on account of any error of description as to quantity or otherwise if any such shall be found.

9. This agreement is conditional upon the passing of the Bill through Parliament (for which the Company undertake to apply forthwith) and making of the Order herein-before referred to but the Company and the Governors hereby agree to use their best endeavours respectively to promote the passing of the said Bill and procure the making of the said Order as soon as possible after the signing of these presents and Lord Brownlow and the Governors further agree not to oppose the said Bill and also at the expense of the Company to give evidence in support of the same if the Company shall require them so to do Provided that if such Bill and

Order are not obtained within twelve calendar months from the date hereof this agreement and everything herein contained shall be void and of no effect. A.D. 1905.
—

In witness whereof Lord Brownlow and the Governors have hereunto set their hands and the Company has affixed its common seal the day and year first before written.

The FIRST SCHEDULE above referred to.

PARTICULARS of the LAND agreed to be sold by LORD BROWNLOW to the COMPANY and in the above written AGREEMENT called the land coloured yellow.

All those two pieces of land situate on the north and south sides respectively of the London and North Western Railway in the parish of Berkhamsted Saint Peter or Berkhamsted Urban in the county of Hertford and forming part of the pieces of land numbered 45 50 and 36 respectively on the twenty-five-inch map of the Ordnance Survey published in one thousand eight hundred and ninety-eight which said pieces of land by the above written agreement contracted to be sold are distinguished on the plan annexed to the above written agreement by the colour yellow and contain three acres one rood and seven poles or thereabouts.

The SECOND SCHEDULE above referred to.

PARTICULARS of the LAND agreed to be sold by the COMPANY to the GOVERNORS and in the above-written AGREEMENT called the land coloured red.

All those two pieces of land situate on the east and west sides respectively of the street known as the Wilderness in the parish of Berkhamsted Saint Peter in the county of Hertford and distinguished on the plan annexed to the above written agreement by the colour red and containing one rood eighteen poles or thereabouts.

A.D. 1905.

The THIRD SCHEDULE above referred to.

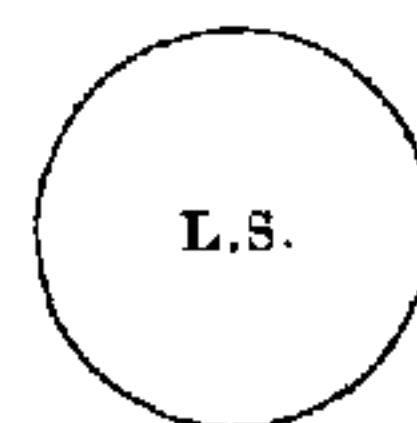
The NAMES ADDRESSES and DESCRIPTIONS of the GOVERNORS present at a MEETING of their body on the second day of December one thousand nine hundred and four.

Name.	Address.	Description.
Earl Brownlow	Ashridge Herts	Peer of the Realm.
Sir John Evans	Nash Mills Hemel Hempstead.	K.C.B.
Richard Powell Cooper	Berkhamsted	Esquire.
Arthur Hampton Longman	Shendish Herts	Esquire.
Josiah East	Berkhamsted	Timber merchant.
Henry James Foster	Ditto	Colonel of Volunteers.
Henry Constable Curtis	Ditto	Clerk in Holy Orders.
Thomas Humphrey Ward	Stocks Tring	Esquire.
James Richard Thursfield	Berkhamsted	Esquire.

Witness to the signature of Lord
Brownlow and the Governors
A. W. VAISEY
Solicitor
Berkhamsted.

BROWNLOW.
JOHN EVANS.
R. P. COOPER.
ARTHUR H. LONGMAN.
JOSIAH EAST.
H. J. FOSTER.
H. CONSTABLE CURTIS.
T. HUMPHREY WARD.
JAMES R. THURSFIELD.

The common seal of the Company was hereunto affixed at a meeting of directors duly convened and held at the registered office of the Company on the seventh day of December one thousand nine hundred and four in the presence of



GEORGE DANIELS } Directors.
WM. CHILTON }

A. F. PHILLIPS Secretary.

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